



Bill Number: H.B. 2105

Mesnard Floor Amendment

Reference to: FINANCE Committee Amendment

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Replaces the three-year exemption from on-site agricultural property inspections with an exemption from on-site inspection in consecutive years, unless there is a change in use, a change in ownership, a property split or a taxable improvement.
2. Makes conforming changes.

MESNARD FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2105
(Reference to FINANCE Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{Orange lowercase underlining in double curly brackets} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{Orange lowercase strikeout in double curly brackets}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
>>Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~>>Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 42-11053, Arizona Revised Statutes, is amended
3 to read:

4 42-11053. Investigating property valuations

5 A. The department shall:

6 1. Investigate property valuations and any matters relating to
7 property taxes and shall require the production of any private or public
8 record relating to those valuations or property taxes.

9 2. NOTIFY THE OWNER OR POSSESSOR OF THE PROPERTY THAT AN INSPECTION
10 WILL OCCUR AND PROVIDE THE DATE OF THE INSPECTION. THE DEPARTMENT IS NOT
11 REQUIRED TO PROVIDE THE NOTICE REQUIRED BY THIS PARAGRAPH BY CERTIFIED
12 MAIL.

13 3. PROVIDE A COPY OF THE INSPECTION REPORT TO THE OWNER OR
14 POSSESSOR OF THE PROPERTY.

15 B. The director or the director's agent may:

16 1. Enter on and examine any property in this state to determine its
17 full cash value. If the owner or possessor of property refuses entrance

1 to the director or the director's agent, the director may estimate the
2 valuation of the property.

3 2. Require any officer whose duties relate to assessing or
4 collecting taxes to report to the director at the time and in the manner
5 that the director prescribes.

6 Sec. 2. Section 42-12158, Arizona Revised Statutes, is amended to
7 read:

8 42-12158. Inspections by county assessor

9 A. The county assessor or the assessor's deputies shall:

10 1. Make an on-site inspection of twenty-five percent of the
11 property classified as being used for agricultural purposes each year.

12 2. Make an on-site inspection and appraise all of these properties
13 within every four years.

14 3. If the county assessor or the assessor's deputy determines that
15 the property does not meet the criteria for agricultural classification,
16 notify the property owner pursuant to section 42-12156.

17 4. NOTIFY THE PROPERTY OWNER BEFORE AN INSPECTION OCCURS AND
18 PROVIDE THE DATE OF THE INSPECTION. THE COUNTY ASSESSOR IS NOT REQUIRED
19 TO PROVIDE THE NOTICE REQUIRED BY THIS PARAGRAPH BY CERTIFIED MAIL.

20 5. PROVIDE A COPY OF THE INSPECTION REPORT TO THE PROPERTY OWNER.

21 B. A PROPERTY THAT MEETS THE CRITERIA FOR AGRICULTURAL
22 CLASSIFICATION IS NOT SUBJECT TO AN ON-SITE INSPECTION ~~{{FOR THE~~
23 ~~THREE-YEAR PERIOD AFTER THE DATE OF THE MOST RECENT ON-SITE INSPECTION~~
24 ~~CONDUCTED}}~~ {{IN CONSECUTIVE YEARS}} PURSUANT TO THIS SECTION UNLESS ONE
25 OF THE FOLLOWING OCCURS:

26 1. THE PROPERTY OWNER FILES A CHANGE IN THE USE NOTICE PURSUANT TO
27 SECTION 42-12156, SUBSECTION A.

28 2. THERE IS A SPLIT OF THE PROPERTY.

29 3. THERE IS A CHANGE IN OWNERSHIP OR LEASE OF THE PROPERTY.

30 4. THERE IS A TAXABLE IMPROVEMENT MADE TO THE PROPERTY.

31 C. FOR THE PURPOSES OF THIS SECTION, THE COUNTY ASSESSOR MAY
32 DEVELOP A STANDARDIZED FORM FOR INSPECTION REPORTS.

33 [D. DURING THE ~~{{THREE-YEAR PERIOD PRESCRIBED BY SUBSECTION B OF~~
34 ~~THIS SECTION}}~~ {{YEAR FOLLOWING THE YEAR IN WHICH AN ON-SITE INSPECTION IS
35 CONDUCTED}}, IF THE COUNTY ASSESSOR CLASSIFIES A PREVIOUSLY UNREPORTED
36 TAXABLE IMPROVEMENT AS AGRICULTURAL PROPERTY, THE COUNTY ASSESSOR MAY
37 ASSESS THE APPLICABLE PROPERTY TAX ON THE IMPROVEMENT FOR THE CURRENT TAX
38 YEAR AND ANY PRIOR TAX YEAR IN WHICH THE IMPROVEMENT EXISTED.]

39 Enroll and engross to conform

40 Amend title to conform

J.D. MESNARD

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